

HOUSE No. 1589

The Commonwealth of Massachusetts

PRESENTED BY:

Christine P. Barber

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to amend the definition of hate crime.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>1/9/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>2/3/2025</i>

HOUSE No. 1589

By Representative Barber of Somerville, a petition (accompanied by bill, House, No. 1589) of Christine P. Barber and Patrick Joseph Kearney relative to the definition of hate crime. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1392 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to amend the definition of hate crime.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Section 39(a) of Chapter 265 of the General Laws, as appearing in the 2016
2 official edition, is hereby amended by replacing the words “of a person” in Line 2 with the words
3 “of another” and replacing the words “such person” in Line 3 with the words “a person.”

4 Section 2. Section 39(a) of Chapter 265 of the General Laws, as appearing in the 2016
5 official edition, is hereby amended by adding the following paragraph after paragraph one of the
6 said section: “If restitution is ordered under the provisions of this section for purposes of
7 repairing the damage done to the real or personal property with intent to intimidate a person
8 because of such person’s race, color, religion, national origin, sexual orientation, gender identity,
9 or disability, such restitution shall be used to repair the damage done to the property.”